

# Leave Policy



## Document Control

### Revision History

The following Change History log contains a record of changes made to this document:

| Revision Date | Summary of Changes | Modified by   | Comment |
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| 1-May-2023    | Initial Draft      | Anamika Vohra | V 1.0   |

### Document Approvers

The individuals who reviewed, verified, and approved the content of this document based on the requirements of the defined services during this document's creation are listed in the table below:

| Name              | Title    | Status   | Date Approval | of | Version | Comments |
|-------------------|----------|----------|---------------|----|---------|----------|
| Preeti Chaturvedi | Director | Approved | 2-May-2023    |    | 1.0     |          |

### Distribution

This document has been distributed to:

| Name                        | Title        | Date of Issue | Version |
|-----------------------------|--------------|---------------|---------|
| All Employees of Consint.ai | Leave Policy | 2-May-2023    | 1.0     |

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## 1. Objective

At Consint Solutions Private Limited ("Consint.ai"), we encourage our employees to have a healthy work life balance by providing time off from work to allow them to lead a balanced personal and professional life.

## 2. Purpose

The purpose of this policy is to set out guidelines and administrative procedures on how to manage leave requirements. The policy covers the following types of leave; Privilege leave; Casual leave; Sick leave; Maternity leave; Adoption leave; Paternity leave; Public and National holidays; Leave without pay; Unauthorized absence.

## 3. Scope

This policy applies to all full-time employees of Consint Solutions Private Limited ("Consint.ai").

## 4. Entitlements

| Type of Leave                           | Privilege Leave                                                                                      | Casual Leave                                                                                         | Sick Leave                                                                                           |
|-----------------------------------------|------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------|
| Entitlement                             | 20                                                                                                   | 7                                                                                                    | 7                                                                                                    |
| Leave Credit                            | <u>Quarterly</u><br>-Credited at the start of each quarter<br>-Prorated for new starters in the year | <u>Yearly Credit</u><br>-Credited at the start of the year<br>-Prorated for new starters in the year | <u>Yearly Credit</u><br>-Credited at the start of the year<br>-Prorated for new starters in the year |
| No. of days that can be taken at a time | -As required                                                                                         | -As required                                                                                         | -As required<br>Read in conjunction with Sickness Absence Policy                                     |
| Leave Carry Forward                     | -Maximum up to 30 days in to next calendar year                                                      | -No Carry Forward allowed                                                                            | -No Carry Forward allowed                                                                            |
| When to apply                           | -14 days before start of leave                                                                       | -Prior intimation as possible                                                                        | -Timely intimation                                                                                   |

## 5. General Guidelines

- 5.1 Leave credits and accumulation are calculated for the calendar year.
- 5.2 Leave for new employees will be credited on a pro rata basis from date of joining.
- 5.3 Employees are not permitted to combine their available leave under any leave type unless for reasons of sickness or to support maternity with the approval of the line manager. This clause should be read in conjunction with the company's Sickness and Maternity leave section.
- 5.4 Employees are eligible to take only 5 Leave in one stretch that to PL or CL or SL.
- 5.5 Leave cannot be adjusted against notice period.
- 5.6 Employees are required to apply for leave using the HRMS Tool (HR One) and proceed on leave only after the line manager's approval is obtained in case of any exception to aforesaid, employee/reporting manager must apply the leave on tool within two business days from the date of absence from work. In case of employees, who are governed by VPI system. If neither employee nor manager update the leave in HR One, leaves will be auto marked and approved after the pay period.
- 5.7 Backdated leaves beyond 5 days cannot be applied in HR One. This is to encourage employees and managers to timely update the leaves. You are required to raise an HR direct case along with line manager and Functional Director's approval for exceptional scenario.
- 5.8 Leaves will be auto approved if no action taken within two working days.
- 5.9 Every January the calendar resets and employees need to avail their leaves (as per the requirement) during current calendar year only.

## 6 Privilege Leave

The company strongly encourages employees to use privilege leave for vacation to ensure a healthy work life balance.

- 6.1 Employees are expected to plan their privilege leave at least 14 (fourteen) days in advance of taking the leave. Privilege leave can be taken only with prior approval of the line manager.
- 6.2 Privilege leave carried forward from the previous year and those earned during a calendar year can be accumulated and utilized any time during the same calendar year. Any unutilized leave more than 30 (thirty) days will lapse at the end of the calendar year and only 30 (thirty) days shall be carried forward to the next calendar year.
- 6.3 Encashment of accumulated privilege leaves is available only upon separation from the company and the same will be up to a maximum of 30 days.

## 7 Casual Leave

Casual leave may be used to meet casual requirement of an employee.

7.1 Employees cannot avail casual leave during notice period, without prior approval from the line manager.

## 8. Sick Leave

Sick leave is time off from work for employees to rest and recover from sickness or ill health.

8.1 Employees availing sick leave must inform their line manager no later than 30 (thirty) minutes before the start of a normal working day.

8.2 Employees must make all possible efforts to inform their line manager and should not leave messages with their colleagues to be passed to their line managers. Employees must keep their line managers informed on the anticipated length of absence and the progress of their health during the absence.

8.3 Sick leave exceeding three (3) days requires submission of a medical certificate to the line manager with a copy to HR direct, who will forward it to HR Operations to be filed in the employee's file.

8.4 On resuming work, the employee must update the leave using the HR One and obtain the line manager's approval immediately.

8.5 In case an employee spends more than five (5) hours in a day in wellness/medical room due to sickness, sick leave must be updated for that day by employee.

8.6 This section should be read along with the company's Sickness and Absence Management Policy.

## 9. Half Day Leave

9.1 Employee can avail half day leave either first half or second half of the day under any of the leave type i.e., Privilege leave, Casual leave or Sick leave.

9.2 In case an employee is not available in the workplace for a minimum of 3.5 hours to 7 hours (30 minutes of break inclusive), he or she shall be considered on a half day leave.

## 10. Maternity Leave

### 10.1 Definitions

10.1.1 "Maternity leave" is approved paid leave extended to all women employees who are working in the organization for certain period before and after child birth along with certain other benefits.

10.1.2 A "Commissioning mother" who as biological mother wishes to have a child and prefers to get embryo implanted in any other woman.

10.1.3 An "adopting mother" who legally adopts a child below the age of three (3) months.

10.1.4 "Medical termination of pregnancy" means the termination of pregnancy permissible

under the provisions of medical Termination of Pregnancy Act, 1971.

10.1.5 “Miscarriage” means expulsion of the contents of a pregnant uterus at any period prior to or during the twenty-six week of pregnancy but does not include any miscarriage, the causing of which is punishable under the Indian penal code.

10.1.6 Tubectomy is a surgical procedure for sterilization in which a woman’s fallopian tubes are clamped and blocked or severed and sealed to prevent pregnancy.

## 10.2 Eligibility

All women employees who have worked for a minimum of 80 (eighty) days of service with the company in the period of twelve months immediately preceding the date of her expected delivery or child is handed over to the commissioning/adopting mother, or date of miscarriage/medical termination are eligible for paid maternity leave. For employees with less than 80 (eighty) days service, maternity leave will be treated as unpaid leave. All eligible women employees are entitled to maternity leave, as shown in the table below. The maternity leave is inclusive of week offs, and public and national holidays.

| Type of Maternity Leaves                                                | Leave Entitlement (In Weeks) | Documents required to be submitted to HR to Avail the Leave                                                                  | Leave Commencement                                            |
|-------------------------------------------------------------------------|------------------------------|------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------|
| Maternity Leave in case of women employee up to two                     | 26                           | 1. Confirmation of pregnancy along with the date of delivery.                                                                | Not earlier than eight (8) weeks prior                        |
| (2) surviving children                                                  |                              | 2. Medical certificate from certified medical practitioner.                                                                  | to the date of delivery.                                      |
| Maternity Leave in case of women employee with two (2) or more children | 12                           | 1. Confirmation of pregnancy along with the date of delivery.<br>2. Medical certificate from certified medical practitioner. | Not earlier than six (6) weeks prior to the date of delivery. |

|                                           |    |                                                                                                |                                                                                 |
|-------------------------------------------|----|------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------|
| Commissioning Mother                      | 12 | 1. Medical documents.<br><br>2. Birth Certificate of the child.                                | From the date the child is handed over to the commissioning mother after birth. |
| Adopting Mother                           | 12 | 1. Original legal documentation confirming adoption.<br><br>2. Birth Certificate of the child. | From the date the child is handed over to the adopting mother.                  |
| Leave for miscarriage/medical termination | 10 | Medical certificate from certified medical practitioner.                                       | Day of the miscarriage/medical termination.                                     |
| Tubectomy operation                       | 2  | Medical certificate                                                                            | From the day of the operation.                                                  |

### 10.3 Process

- 10.3.1 To avail maternity leave, the employee must notify the respective line manager of her intent to take maternity leave preferably no later than 15 (fifteen) weeks prior to the date of delivery and apply the leaves in HR One.
- 10.3.2 A scanned copy of the maternity certificate confirming the date of delivery and relevant medical documents must be submitted to HR direct.
- 10.3.2 If childbirth occurs before the employee is due to commence maternity leave, such maternity leave will automatically start from the date of childbirth.
- 10.3.3 The employee is expected to provide a declaration in writing stating that the employee will not work in any other establishment during the period for which maternity benefits are being received violation of this policy/clause will be viewed as serious breach of company policy which may result in severe disciplinary action including termination of employment.

### 10.4 Additional Benefits

- 10.4.1 Employees requiring leave in addition to maternity leave may obtain approval from the line manager as applicable, to use available privilege, casual or sick leave as required.
- 10.4.2 A Woman employee suffering from illness arising out of pregnancy, delivery,



premature birth of child or miscarriage shall, on production of such supporting medical documents, be entitled, in addition to the period of absence allowed to her under the policy, additional leave with pay for a maximum period of one month.

- 10.4.3 Employees are eligible for medical benefits in accordance with the company's medical insurance benefit policy.
- 10.4.4 The employee entitled to maternity benefit may if required, give notice in writing, to the company, stating that her maternity benefit and any other amount to which she is entitled to, may be paid to her or to such person as she may nominate in the notice. In the absence of any notice of nomination, the company shall pay the benefit only to the employee, which shall be considered valid discharge of the company's obligation.
- 10.4.5 In case the nature of work permits, the reporting manager at his/her own discretion may approve work from home option to the female employees after the maternity leaves have exhausted. However, the duration has to be mutually agreed by the employee and her manager.

#### 10.5 Returning to work

On returning to work the employee will be entitled to return to the same role performed before maternity leave, if available. In the event the role the employee was performing is filled, the employee may be offered another available role in the similar for which the employee is qualified.

#### 10.6 Unfortunate event of death of an employee

- 10.6.1 During delivery or during the period immediately following the date of her delivery, the company shall pay for maternity benefit for that entire period.
- 10.6.2 During the maternity period, maternity benefit shall be payable only for the days up to and including the day of the employee's death.
- 10.6.3 In case of death of the child too during this period, the company shall pay maternity benefit for the days up to and including the date of death of the child.

#### 10.8 Exception approval

Any deviation from the documented policy will require the approval of the Director, Employee Relations

### 11. Paternity Leave

- 11.1 All male employees are eligible for paternity leave for a maximum of two (2) children (biological/adopted/surrogate).
- 11.2 Employees can avail five (5) working days as paternity leave.

11.3 Paternity leave must be taken within six (6) months of the birth or adoption of a child during the employment.

## 12. Public & National Holidays

12.1 Employees are entitled to receive 10 (ten) days or declared public and national holidays in a calendar year.

12.2 This list of Public Holidays is available on the Hub.

12.3 In case of critical business requirements, the line manager may opt for flexible holiday schedule for his/her team members in such circumstances, the line manager has the flexibility to inter change Indian festive holiday with U.S. holiday or any other Indian holidays in the HR One.

## 13. Leave Without Pay

13.1 When all available privilege, casual and sick leave have been exhausted, any approved leave will be treated as leave without pay.

13.2 Any leave more than the available leave balance may be sanctioned as leave without pay, but only for medical situations, family exigencies or higher studies.

13.3 Leave without pay, for a period of up to 30 (thirty) days, for reasons mentioned in clause 12.2 can be approved by the line manager in consultation with the Functional Director as applicable and will be treated as leave without pay.

13.4 Any unapproved leave will be treated as unauthorized absence, please refer to section 12 of this policy for details.

13.5 Repeated instances of unapproved leave will lead to disciplinary action as per the Disciplinary, Capability and Grievance Policy.

13.6 Weekends would be regarded as leave without pay if they fall in between the leave without pay (LWP) period. For instance, if the employee takes a Friday- Monday leave and this or her leave balance is exhausted, all four (4) days including the weekly offs (Saturday and Sunday) will be marked as leave without pay.

## 14. Unauthorized Absence

14.1 Unauthorized absence is when an employee is absent from work without communicating the reason for absence.

14.2 Employees are required to communicate reason for absence within 2 business days from the first day of their absence.

14.3 Employees must take prior approval from their line manager if they wish to be absent from work during the normal working hours.

14.4 Such unauthorized absence will be considered as leave without pay and failure to notify the relevant line manager of a period of absence may result in disciplinary action in line with the Disciplinary, Capability and Grievance Policy.

## 15. Compensatory off

- 15.1. If an employee is required to work on any important assignment, assigned by their Managers on a Festival / Declared / Weekly Off day, they are eligible for CO on any other working day.
- 15.2. Official approval is mandated in advance via HROne. Managers have to review the work being done on such days.
- 15.3. No CO will be entertained when the work is being done on these days without proper approval on HROne.
- 15.4. CO cannot be combined with any other leave.
- 15.5 CO cannot be encashed at any time/ at relieving or termination.
- 15.6. The CO has to be availed (one day per month) within a period of three months from the date worked on Holidays / Weekly Offs.
- 15.7. Employees are eligible for a maximum of 3 COs in a quarter.
- 15.8. CO when not availed within the stipulated time period will lapse automatically.
- 15.9. CO is eligible, as per work location (If a base location employee works in another branch for his project work, his comp off or holiday list will be applicable as per work location).
- 15.10. Compensatory off will not be eligible for Grade G50 and above

## 16. Note:

- Only 30 Days PL will be carrying forward for next year.
- Every January the calendar resets and employees needs to avail their leaves (as per the requirement) during current calendar year only.
- PL will be granted by quarterly (in each quarter PL is 5 as we have 4 quarter in year) SL/CL will be not carrying forward for next year
- If candidates joining date will be before 15th, then will entitled month leaves but if joining date will be after 15th then leave for month will not be granted.
- Only 1 leave will allow for interns in a Month.
- Only 1 leave will allow in a month during the probation period rest will count as leave without pay (LWP).
- After the probation completion leave will allow as per leave policy to the employee.
- More than two days of sick leave require medical certificate for all level of employees.
- CL & PL cannot be clubbed.
- Employee requires to mention leave type (CL/SL/PL).